

25STCV12497 25STCV12497

County: los-angeles

Division: Civil Law and Motion

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MOTION FOR SANCTIONS

The Court

tenders the following tentative decision in the matter Erick Jolley v. FCA US, LLC, et al., Los Angeles County Superior Court case number 25STCV12497, set for hearing on July 21, 2026. FCA US, LLC (Defendant) moves for an order imposing sanctions on Erick Jolley (Plaintiff) pursuant to Code of Civil Procedure section 871.26. Plaintiff has not filed an opposition to the motion. Defendant's motion is granted.

A.

Legal Standard

In civil

actions seeking restitution or the replacement of a motor vehicle pursuant to Code of Civil Procedure section 871.20, within 60 days of the filing of an answer or other responsive pleading, "all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).) Sanctions of \$1,500 and \$2,500 are required against a plaintiff or defendant, respectively, that fails to comply with section 871.26, subdivision (b), absent a showing of good cause. (Id. § 871.26, subd. (j)(1).)

B. Discussion

Defendant seeks an order from the

Court imposing sanctions pursuant to section 871.26, subdivision (j)(1). Plaintiff

filed the present action on April 29, 2025. Defendant filed its responsive pleading, a demurrer, on July 7, 2025. Initial disclosures were thus due by September 5, 2025. Plaintiff has not yet served initial disclosures. (Lopez Decl. ¶ 4.) Thus, Plaintiff has failed to comply with the requirements of section 871.26 and sanctions are warranted. In failing to file an opposition, Plaintiff does not contest this point. Accordingly, Defendant's motion for sanctions is granted and the Court imposes \$1,500 in sanctions on Plaintiff's counsel pursuant to Code of Civil Procedure section (j)(1).

C. Conclusion

The Court grants Defendant's motion. Sanctions to be paid in 30 days to counsel for Defendant.